

CASE STUDY – 7

Shreya Singhal vs Union of India (2015)

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Shreya Singhal v. Union of India

1. Introduction

- ✦ Shreya Singhal vs Union of India is an important case related to freedom of speech and expression on the internet.
- ✦ The case was decided by the Supreme Court of India in 2015.
- ✦ It mainly concerned Section 66A of the Information Technology Act, 2000.
- ✦ Section 66A allowed punishment for sending online messages that were considered offensive, annoying, or inconvenient.
- ✦ The Supreme Court found that this law could restrict people's freedom of speech.
- ✦ The Court therefore declared Section 66A unconstitutional and struck it down.

2. Facts of the Case

- ✦ The case started after some people were arrested for comments made on social media.
- ✦ Shreya Singhal, a law student, challenged Section 66A.
- ✦ She argued that the law violated the Fundamental Right to Freedom of Speech and Expression under Article 19(1)(a) of the Constitution.

- ✦ She also argued that the words used in Section 66A were unclear and could be misused.
- ✦ The case reached the Supreme Court.

3. Legal Issues

- ✦ Whether Section 66A of the IT Act violated the right to freedom of speech.
- ✦ Whether the restrictions imposed by Section 66A were reasonable under the Constitution.
- ✦ Whether the vague wording of the law could lead to misuse.

4. Judgement

- ✦ The Supreme Court gave its judgment on 24 March 2015.
- ✦ The Court struck down Section 66A completely.
- ✦ It held that Section 66A violated Article 19(1)(a) of the Constitution.
- ✦ The Court said that the right to express opinions includes the right to express unpopular or disagreeable opinions.
- ✦ The Court also found that the words used in Section 66A were vague and open to different interpretations.

5. Legal Principle

- ✦ Freedom of speech and expression is a fundamental right.
- ✦ Any restriction on this right must satisfy the requirements of the Constitution.
- ✦ A law cannot be so vague that people do not clearly understand what is prohibited.
- ✦ Online speech is also protected under the fundamental right to freedom of speech.
- ✦ The government cannot unnecessarily restrict people's opinions simply because they may be unpopular or offensive.

6. Business Relevance

- ✦ The case is important for businesses using social media and digital platforms.
- ✦ Companies must respect freedom of expression while managing online content.
- ✦ It highlights the importance of having clear and reasonable rules for digital communication.
- ✦ Businesses should be careful when dealing with customer reviews, employee posts, and online opinions.

- ✦ The case also shows the importance of balancing digital regulation with individual rights.

7. Conclusion

- ✦ *Shreya Singhal v. Union of India* is a landmark case in Indian constitutional and cyber law.
- ✦ The Supreme Court protected the freedom of speech of people on the internet.
- ✦ By striking down Section 66A, the Court prevented an unclear law from being used to unnecessarily restrict online expression.
- ✦ The case shows that freedom of speech must be protected both offline and online.
- ✦ It remains an important case for understanding fundamental rights, social media, and cyber law.